

22STCV32546 22STCV32546

County: los-angeles

Division: Civil Law and Motion

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Case Number: 22STCV32546 Hearing Date: September 9, 2026 Dept: 512

HEARING DATE: Weds., September 9, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Arshadi

v. Alpha Construction, Co., Inc., COMPL.

FILED: 10-04-22

et al.

CASE NUMBER: 22STCV32546

NOTICE: OK

PROCEEDINGS: MOTION

TO REOPEN DISCOVERY AND AUGMENT EXPERT DESIGNATION

MOVING PARTY:

Defendant Alpha Construction Co.,

Inc.

RESP. PARTY: Plaintiff

Aryand Arshadi

MOTION TO REOPEN

DISCOVERY;

MOTION TO AUGMENT EXPERT DESIGNATION

(CCP §§ 2024.050, 2034.610)

TENTATIVE RULING:

Defendant Alpha

Construction Co., Inc.'s Motion to Reopen Discovery and to Augment Expert Designation is DENIED.

Moving party is ordered to
give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on August 26, 2026 ☐ Late ☐
☐ None

REPLY: Filed
on September 1, 2026 ☐
Late ☐ None

ANALYSIS:

I.

Background

On October 4, 2022,
Plaintiff Aryand Arshadi ("Plaintiff") filed the instant action against
Defendants Alpha Construction Co., Inc. ("Alpha Construction"); McCadden Plaza
Tay Housing, LP ("McCadden Plaza"); and Los Angeles LGBT Center ("LA LGBT
Center") ("Defendants") and Does 1-100, alleging causes of action for
Negligence; Premises Liability; Negligent Hiring, Supervision, Training and/or

Retention; and Negligence Per Se. (Compl., p. 1.)

On March 1, 2023,
Defendants filed Answers.

On August 13, 2026, Alpha
Construction filed the instant Motion to Reopen Discovery and to Augment Expert
Designation (the "Motion").

On August 26, 2026,
Plaintiff filed an Opposition.

On September 1, 2026,
Alpha Construction filed a Reply.

II.
Legal
Standard

Reopening of Discovery

Code of Civil Procedure section
2024.050 states:

On motion of any party, the court may
grant leave ... to reopen discovery after a new trial date has been set. This
motion shall be accompanied by a meet and confer declaration under Section
2016.040.

(b) In exercising its discretion
to grant or deny this motion, the court shall take into consideration any
matter relevant to the leave requested, including, but not limited to, the
following:

(1) The necessity and the reasons
for the discovery.

(2) The diligence or lack of
diligence of the party seeking the discovery or the hearing of a discovery
motion, and the reasons that the discovery was not completed or that the

discovery motion was not heard earlier.

(3) Any likelihood that

permitting the discovery or hearing the discovery motion will prevent the case from going to trial on the date set, or otherwise interfere with the trial calendar, or result in prejudice to any other party.

(4) The length of time that has

elapsed between any date previously set, and the date presently set, for the trial of the action.

(c) The court shall impose a

monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to extend or to reopen discovery, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(Code Civ. Proc., § 2024.050.)

Expert Designation Augmentation

“On motion of any party who has

engaged in a timely exchange of expert witness information, the court may grant leave to . . . (1) Augment that party’s expert witness list and declaration by adding the name and address of any expert witness whom that party has subsequently retained.” (Civ. Proc. Code, § 2034.610,

subd. (a)(1).) A motion under this subdivision “shall be made a sufficient time in advance of the time limit for the completion of discovery . . . to permit the deposition of any expert to whom the motion relates”

(Code Civ. Proc., § 2034.610, subd. (b)(1).) Finally, “[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2034.610, subd. (c).)

Further:

The court shall grant leave to augment

or amend an expert witness list or declaration only if all of the following conditions are satisfied:

(a) The court has taken into account the extent to which the opposing party has relied on the list of expert witnesses.

(b) The court has determined that any party opposing the motion will not be prejudiced in maintaining that party's action or defense on the merits.

(c) The court has determined either of the following:

(1) The moving party would not in the exercise of reasonable diligence have determined to call that expert witness or have decided to offer the different or additional testimony of that expert witness.

(2) The moving party failed to determine to call that expert witness, or to offer the different or additional testimony of that expert witness as a result of mistake, inadvertence, surprise, or excusable neglect, and the moving party has done both of the following:

(A) Sought leave to augment or amend promptly after deciding to call the expert witness or to offer the different or additional testimony.

(B) Promptly thereafter served a copy of the proposed expert witness information concerning the expert or the testimony described in Section 2034.260 on all other parties who have appeared in the action.

(d) Leave to augment or amend is conditioned on the moving party making the expert available immediately for a deposition under Article 3 (commencing with Section 2034.410), and on any other terms as may be just....

(Code Civ. Proc., § 2034.620.)

Finally, Code of Civil Procedure section 2034.630 states that "[t]he court shall impose a monetary sanction

under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to augment or amend expert witness information, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2034.630.)

Sanctions

“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

III.

Discussion

Alpha Construction moves for an order to reopen discovery and serve supplemental written discovery requests upon Plaintiff and to allow a second deposition of Plaintiff on the grounds that it has been nearly two years since fact discovery closed, and “Defendants must have access to the past two years of Plaintiff’s medical history to learn whether his condition has improved or worsened, and to verify the extent to which he has sought medical treatment.”

Alpha Construction also moves for an order permitting Alpha Construction to designate a retained expert neuropsychologist after Alpha Construction “electively de-designated neuropsychology expert Dr. Schaeffer” in October 2024 “based upon representations from opposing counsel that their own neuropsychologist, Dr. Tervo, had not conducted an IME of Plaintiff and had not formed any opinions. Yet after the close of expert discovery, and after trial was continued, Plaintiff’s counsel ... arranged an IME of Plaintiff, conducted by Dr. Tervo on October 30, 2024. Although Dr. Tervo submitted to a deposition in 2025, Defendants had already been deprived of an opportunity to designate an expert in that field due to Plaintiff’s discovery gamesmanship.”

The Court has reviewed all evidence and briefing filed by the parties and determines that the moving party has not

met its burden of proof for relief requested.

First, the Court finds there is no mandatory meet and confer declaration accompanying the Motion as required by Code of Civil Procedure sections 2024.050 and 2034.610.

Next, the Court does not find Alpha Construction has demonstrated necessity for reopening written discovery to allow additional interrogatories and requests for production to be propounded on Plaintiff, and Alpha Construction has shown a lack of diligence in making this request. (Code Civ. Proc., § 2024.050.) Indeed, the parties do not dispute that the parties had an understanding that formal fact discovery closed on or about October 12, 2024 (see Motion; Opp.; Reply); however, Alpha Construction fails to set forth any evidence demonstrating why, for nearly two years, Alpha Construction failed to move to reopen discovery and/or to obtain updated medical information on Plaintiff until the instant Motion. This is despite the fact that the moving party appeared before the Court on several occasions yet did not raise this very issue at any time. Further, Plaintiff provides undisputed evidence that the parties were informally engaging in discovery in 2025 beyond the formal discovery cut-off deadline (see e.g., Opp., Farahi Decl., Exh. O) and yet Alpha Construction failed to request additional written discovery.

While the Court acknowledges the Motion states “the reason that this motion was not made earlier was because trial was only continued for a few months at a time, for each continuance, and the motion did not become necessary until the trial date was pushed so far out that the evidence obtained during discovery would be 2+ years old at the time of trial” (Motion, p. 8), the Court does not find this unsupported rationale to be persuasive or sufficient to demonstrate diligence in the circumstances of this action.

Furthermore, the Court finds the Motion fails to demonstrate specific topics and/or questions that would be posed in additional written discovery thereby making it difficult for the Court to ascertain necessity for reopening written discovery.

Third, the Court finds Alpha Construction's cursory request in the Notice of Motion to depose Plaintiff for a second time is legally unsupported in the Motion. Indeed, there is no legal authority included in the Motion at all to support this request. While the

Court acknowledges that Alpha Construction raises Code of Civil Procedure section 2025.610 for the first time in the Reply brief, the Court does not find Alpha Construction has demonstrated good cause under that code provision for an additional deposition of Plaintiff, especially since the evidence presented by Plaintiff shows that “Plaintiff has already sat for five examinations and depositions in this case: his deposition on October 18, 2023, examinations by Dr. Ludwig on April 25, 2024, Dr. Macyszyn on June 18, 2024, and Dr. Schaeffer on August 5, 2024, and Dr. Tervo's five-and-a-half-hour evaluation on October 30, 2024. (Exs. A, B, C, I; Ex. H, 20:3-5; Farahi Decl., ¶ 12.)” (Opp., p. 13.) Further, Alpha Construction has not demonstrated there has been a significant change in Plaintiff's circumstances since the prior depositions/examinations to warrant an additional deposition. Indeed, Alpha Construction merely states that during the three years since Plaintiff's deposition, “Plaintiff's circumstances may have changed.” (Reply, p. 8, emphasis added.)

The Court also finds it notable here that there is no evidence before this Court that Alpha Construction attempted to meet and confer and/or stipulate with Plaintiff for additional written discovery and/or a second deposition of Plaintiff limited solely to updates in Plaintiff's medical condition and/or medical history since 2023.

Finally, the Court does not find that Alpha Construction satisfied the requirements of Code of Civil Procedure section 2034.620 for augmenting Alpha Construction's expert designation list. (Code Civ. Proc., §§ 2034.610, 2034.620.) Specifically, Alpha Construction fails to show either that Alpha Construction “would not in the exercise of reasonable diligence have determined to call that expert witness or have decided to offer the different or additional testimony of that expert witness” or “failed to determine to call that expert witness, or to offer the different or additional testimony of that expert witness as a result of mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 2034.620, subd. (c)(1)-(2).)

Further, to the extent Alpha Construction contends its lack of neuropsychology expert is due to mistake, inadvertence, surprise, or excusable neglect, Alpha Construction has not demonstrated it has done both of the following: “Sought leave to augment or amend promptly after deciding to call the expert witness or to offer the different or additional testimony” and “Promptly thereafter served a copy of

the proposed expert witness information concerning the expert or the testimony described in Section 2034.260 on all other parties who have appeared in the action.” (See Code Civ. Proc., § 2034.620, subd. (c)(2)(A)-(B).)

Indeed, Alpha Construction states it “de-designated neuropsychology expert, Dr. Schaeffer” on October 11, 2024, but then did not file the instant Motion until August 13, 2026. (See Motion, pp. 6-7; Code Civ. Proc., § 2034.620, subd. (c)(2)(A).) Further, Alpha Construction fails to provide any mention, let alone evidence, of a copy of the proposed expert witness information that has also been served on all parties who have appeared to the action. (See Code Civ. Proc., § 2034.620, subd. (c)(2)(B).)

For all these reasons, the Motion is DENIED.

As to sanctions, the Court finds the Notice of Opposition fails to comply with Code of Civil Procedure section 2023.040. Thus, Plaintiff’s request for sanctions is denied.

IV.

Conclusion
& Order

For the foregoing reasons, Defendant Alpha Construction Co., Inc.’s Motion to Reopen Discovery and to Augment Expert Designation is DENIED.

Moving party is ordered to give notice.